

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION DIRECTING THE CITY OF CHEYENNE TO LIST THE CHEYENNE AUXILIARY PUMPING STATION LOCATED AT 1504 DILLON AVENUE, CHEYENNE, WYOMING FOR SALE TO THE PUBLIC AS SPECIFIED."

WHEREAS, the Cheyenne Auxiliary Pumping Station (Pump House) located at 1504 Dillon Avenue, Cheyenne, Wyoming, is a unique structure that has historical significance to the Cheyenne community;

WHEREAS, the Pump House represents an important chapter in the city's development, and holds cultural and historic significance, warranting preservation in the public interest;

WHEREAS, the Pump House is currently abandoned, and despite repeated efforts to secure the premises, the site continues to attract vagrants and present ongoing security and public safety concerns;

WHEREAS, the Pump House also represents a health hazard due to pest infestation, animal waste and drug paraphernalia;

WHEREAS, the Pump House structure has recently been found to be sound and deserves to be brought back to life;

WHEREAS, it is estimated that it will cost approximately \$1,000,000.00 to replace the roof and prepare the Pump House structure to be mothballed until it can be restored;

WHEREAS, it is estimated that restoring the Pump House structure and preparing it for use by a potential tenant would cost approximately \$4,000,000.00;

WHEREAS, the City has had entrepreneurs and business owners express interest in the Pump House for future business opportunities;

WHEREAS, the City does not currently have a private partner or potential tenant willing to sign a Memorandum of Understanding or other type of agreement to help restore the Pump House or utilize it for the benefit of the community;

WHEREAS, the City does not currently have the funding available to restore the Pump House and complete it to the point where the City could reasonably secure a tenant;

WHEREAS, because of the challenges surrounding the restoration and redevelopment of the Pumphouse, it is in the City's best interest to offer the property for sale to better ensure it may be put to a beneficial use; and

WHEREAS, in accordance with Resolution No. 6039, adopted by the Governing Body on March 9, 2020, as part of the sale of the Pump House, the Governing Body must decide if the proceeds from the sale of the property should be deposited in the Revolving Real Property Fund, which fund helps support the acquisition and construction of new real property for the City of Cheyenne.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the City of Cheyenne shall obtain an appraisal for the Cheyenne Auxiliary Pumping Station property located at 1504 Dillon Avenue, Cheyenne, Wyoming and list the property for sale to the public consistent with the requirements of Wyoming Statute § 15-1-112(a);

BE IT FURTHER RESOLVED, that any existing agreements between the City of Cheyenne and other entities related to the Cheyenne Auxiliary Pumping Station property that may impede the sale of the property, or are no longer necessary due to the pending sale of the property, be cancelled, allowed to expire, or completed as appropriate to facilitate a timely and cost-effective listing of the property;

BE IT FURTHER RESOLVED, that as a condition of sale, the purchaser shall be prohibited from demolishing the structure, shall not modify or alter the exterior of the structure in any way that would render it ineligible for nomination to the National Register of Historic Places, and shall ensure that any exterior rehabilitation, renovation or restoration complies with the Secretary of the Interior's Standards for the Treatment of Historic Properties. These requirements shall be expressly incorporated into the deed and shall run with the land as binding covenants enforceable by the City of Cheyenne;

BE IT FURTHER RESOLVED, that as a condition of sale, the City of Cheyenne shall secure any necessary and appropriate easements over the property and include any other terms and conditions in the sale agreement as are necessary to promote investment in and redevelopment of the downtown area;

BE IT FURTHER RESOLVED, that all proceeds of the sale of the property be deposited into the Revolving Real Property Special Revenue Fund to be expended consistent with Resolution No. 6039; and

BE IT FINALLY RESOLVED, that City staff shall report to the Governing Body not later than November 18, 2025, on the status of the sale, and in the event that the property remains unsold and no bona fide offer is pending as of November 18, 2025, the directive to sell the property shall terminate and be of no further force or effect, and the Governing Body may evaluate alternative uses, including restoration through a future one percent (1%) specific purpose sales tax ("6th Penny Tax") ballot initiative or a lease of the property to a third party.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____,
2025.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kylie Soden, City Clerk